

KOMPASS CAPITAL PTE LTD
1013 Geylang East Ave 3 #04-134
Singapore 389728

SERVICE AGREEMENT

This Agreement is made on this 10 day of ^{March} 2023

BETWEEN

- (1) **INSTICT BROTHERS CO LTD** (Company No. 3011401015509), a company incorporated in Japan and having its registered office at 3rd Floor West Side Gotanda Building . 6-2-7 Gotanda Shinagawa-ku Tokyo, 1410031 Japan (the "Company", which term shall include INSTINCT BROTHERS or its holding company in the event of a corporate restructuring for the purpose of its proposed initial public offering);
- and
- (2) **KOMPASS CAPITAL PTE LTD.**, (Company No. 200613824M), a company incorporated in Singapore and having its registered office at 1013 Geylang East Ave 3 #04-134 Singapore 389728 (the "Service Provider") or its assignee.

WHEREAS

- (A) The Company is desirous of engaging the Service Provider to provide project management and sourcing for potential investor(s) services in relation to its proposed initial public offering ("IPO") on the NASDAQ Stock Market or any recognised stock exchange (the "Stock Exchange") or a IPO through a Special Acquisition Company ("DESPAC") , and the Service Provider is willing to provide the said services to the Company as per its request;
- (B) The parties have decided to enter into this Agreement in pursuance of the foregoing, on the terms and conditions set out below.

NOW IT IS AGREED as follows

1 SERVICES

During the term of this Agreement, the Service Provider shall provide the project management and sourcing for potential investor(s) services as spelt out in Annex A ("Services") to the Company with effect from the Date of this Agreement.

Notwithstanding the Services provided by Service Provider to the Company in Annex A, the Company acknowledges and accepts that: -

- (a) the Service Provider is not advising the Company or any other person or entity as to any financial, legal, tax, investment, accounting or regulatory matters in any jurisdiction, this is the role of the professionals;
- (b) no representation or warranty is given by the Service Provider in relation to the merits of the condition, financial or otherwise, and credibility of any of the parties whom the Service Provider may introduce to the Company; and



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(c) the Service Provider is not undertaking the placement of any share or unit in the Company.

2 COMMENCEMENT

The Service Provider shall begin to provide the Services after the signing of this Agreement and shall continue to provide the Services unless otherwise stated in accordance with the terms specified hereunder.

3 REMUNERATIONS

3.1 In consideration of the provision of the Services, the Company shall pay the Service Provider and / or assignee the following:

3.1.1 Fundraising Fee

In the event the Company requires initial or pre-IPO fundraising, the Company agrees to pay the Service Provider 5% of the amount of funds successfully raised, in cash, within three (3) working days from the day of the Company receiving such funds.

3.1.2 Milestone Fees

The Company agrees to pay the Service Provider fees for its DESPAC IPO:

(a) At the completion of the IPO, the Service Provider will be issued 2% shares of the merged SPAC company.

3.2 Reimbursement of Out-of-Pocket Expenses

All disbursements or out-of-pocket expenses (such as transportation costs, documents courier cost etc) incurred and directly identifiable to the aforesaid provision of Services shall be recovered from the Company. For any out-of-pocket expenses above US\$1,000.00, Service Provider will seek the prior approval of the Company.

4. OTHER PROFESSIONALS

The Service Provider will advise the Company on the appointment of other professionals, including tax, audit, accounting and public relations professionals as the Service Provider may deem appropriate. The decision of any appointment of professionals remains at the Company's sole discretion. For the avoidance of doubt, the cost of appointing such other professionals shall be borne by the Company.

5. CONFIDENTIALITY

The Service Provider agrees to treat all Confidential Information concerning the Company as being strictly confidential. Both parties shall agree to keep confidential the terms of this



Agreement. "Confidential Information" includes data, materials, product, technical and economic information, marketing strategies, trade secrets, customer lists, know-how, ideas, discoveries, inventions, improvements, specifications, instructions and software (including source code) disclosed or provided, directly or indirectly, by the Company under this Agreement, whether oral, written, machine readable, in a physical embodiment or otherwise, which is disclosed for the purpose of the Services to Service Provider and which is identified by Company at the time of disclosure as being confidential or proprietary.

For purposes of this Agreement hereof, the term confidential Information shall not include such portion of the information which:

- (a) was in the public domain at the time of its disclosure or thereafter becomes part of the public domain by publication or otherwise subsequent to the time of disclosure under this Agreement through no fault of the Service Provider; or
- (b) was known to the Service Provider or in its possession on a non-confidential basis prior to or at the time of disclosure; or
- (c) is disclosed on a non-confidential basis with the written approval of the Company; or
- (d) is independently developed by the Service Provider without use of the Confidential Information; or
- (e) is rightfully furnished to the Service Provider by a third Party having the authority to disclose such Information without restriction; or

If the Service Provider is required by law or any regulatory authorities to disclose any confidential information, the Service Provider shall notify the Company within reasonable time frame and then may disclose the confidential information to the extent reasonably necessary for the relevant purposes.

6. EXPIRY

This Agreement shall expire by the end of 2 years from the date of this Agreement or the successful listing of the Company at the Stock Exchange whichever is the earliest; and both parties shall be released from their obligations hereunder except as regards accrued rights and liabilities and in particular; any fees earned, due or payable, and out-of-pocket expenses and other fees incurred by or due and payable to the Service Provider up to and including the date of expiry which shall be reimbursed by the Company; and save for Clauses 4, 5, 7 and 8 of this Agreement which shall survive the expiry of this Agreement and shall remain in full force and effect.

Upon expiry of this Agreement, the Company shall pay the Service Provider within five (5) calendar days of the Service Provider's written request, all fees and expenses due and payable to the Service Provider under this Agreement up to and including the date of expiry of this Agreement.

7. AMENDMENTS AND ASSIGNMENTS



This Agreement cannot be modified or changed, nor can any of its provisions be waived, except by written agreement signed by, or on behalf of, each party hereto. This Agreement shall be binding upon and inure to the benefit of the parties hereto and their respective successors and assigns, provided that no party may assign its rights under this Agreement without the prior written consent of all other parties.

8. INDEMNITY

- 8.1 The Company agrees with the Service Provider that the Company shall indemnify and hold harmless the Indemnified Persons (as defined under Clause 8.3 below) from and against all claims, actions, proceedings, demands, liabilities, losses, damages, costs and expenses arising out of or in connection with the engagement hereunder or which arise out of any breach by the Company of any of its obligations or duties or any warranties under the terms of this Agreement, which any Indemnified Person may suffer or incur in any jurisdiction and all costs and expenses incurred incidental thereto by any Indemnified Person, including those incurred in connection with the investigation of, preparation for or defence of, any pending or threatened litigation or claim within the terms of this indemnity or any matter incidental thereto, provided that the Company will not be responsible for any liabilities, losses, damages, costs or expenses which are finally determined by a judgment of a court of competent jurisdiction to have resulted from the fraud, willful misconduct or default or gross negligence on the part of the Indemnified Person, and sums already paid by the Company under this indemnity but which fall within this proviso shall be reimbursed in full.
- 8.2 For the avoidance of doubt, the Service Provider has been retained as an independent contractor with services to be provided solely to the Company. Nothing in this Agreement shall be construed to establish a partnership or a joint venture between the Company and the Service Provider.
- 8.3 For the purposes of this Agreement, "Indemnified Person" means the Service Provider, and any of its subsidiaries, associated companies or affiliates (wherever situated) and their respective directors, officers, agents and employees and each other person, if any, controlling the Service Provider or any of them.

9. NON-CIRCUMVENTION

The Company and the Service Provider hereby irrevocably agrees and warrants that it and its affiliates shall not, directly or indirectly, interfere with, circumvent, attempt to circumvent, avoid or bypass the other party, or obviate or interfere with the relationship of other Party and its contacts for the purpose of gaining any benefit, whether monetary or otherwise. The Company and the Service Provider also undertake not to make use of any third party to circumvent this clause.

10. NON-SOLICITATION



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Absent the written consent of the other parties, no party will, during the term of this Agreement and continuing for a period of one (1) year from the date of termination of this Agreement, solicit or attempt to entice away, hire or engage any person who is at any time during the Engagement Period employed or engaged to perform services by the other party. Notwithstanding the foregoing, the restrictions in this Section shall not apply to employees or consultants who have been terminated by a party and are not subject to restrictive contractual obligations or covenants (including but not limited to any non-competition or garden leave provisions) with respect to such party.

11. GOVERNING LAW AND JURISDICTION

This Agreement shall be governed by, and construed in accordance with the laws of Singapore. In respect of any dispute arising out of or in connection with this Agreement the parties shall submit to the non-exclusive jurisdiction of the Singapore courts. Unless specifically mentioned herein, a person or entity that is not a party to this Agreement has no rights under the Contracts (Rights of Third Parties) Act (Chapter 53B, Singapore Statutes) to enforce or enjoy the benefit of any term in this Agreement.

IN WITNESS WHEREOF this Agreement has been executed by the parties on the date first above written.

INSTINCT BROTHERS CO., LTD.



Name: Tomoki Nagano

Designation: Representative Director & Chairman

KOMPASS CAPITAL PTE LTD.

Name:

Designation:

Appendix A

Scope of Services ("Services") encompasses the following:

- a) Strategizing with the Company on its positioning and roadmap for its capital raising.
- b) Sourcing for and introducing potential investor(s) for purposes of capital raising, where applicable;
- c) Introduce and/or assist in interviewing candidates for independent directors and executive officers of the Company where applicable;
- d) Reviewing and commenting on the tabulation of the Company and/or its affiliates' management accounts or Proforma Group financials for the past three (3) financial years, where applicable, and the financial forecast (including supporting schedules and details of the bases and assumptions on which the financial forecast is based) for the next two financial years, where applicable;
- e) Reviewing and commenting on the findings from the review of the Company's internal control system, where applicable;
- f) To introduce and recommend the Listing Professional Advisers such as the lead managers, underwriters, book-runners, auditors, solicitors, attorneys, company secretary, share register etc;
- g) Co-ordinate and manage the activities of all parties involved in the IPO including lead managers, underwriters, auditors, solicitors, attorneys, company secretary, valuers, share registrar, public relation consultants and printers.

Scope of Services ("Services") encompasses the following for DESPAC IPO:

This Engagement does not include the provision of Combination issue management services or Combination placement and underwriting services. We shall recommend to the Company the appointment of suitable professional firms eg solicitor, auditor, valuer investment banker in undertaking this Combination, if necessary.

- a) Kompass shall introduce potential candidates to the Company from time to time for the Company's consideration.
- b) Pre-Combination Consultancy

We will provide consultancy services to advise and guide the Company in the Combination. We will assess each potential candidate and discuss our views on each candidate with you. We will usually look into, with respect to each potential candidate, the following



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- (a) the shareholding structure;
- (b) the structure of the transaction;
- (c) the capital structure of the candidate;
- (d) the board composition and the management structure;
- (e) conflicts of interest and interested persons transactions;
- (f) appointment of suitable professionals such as the auditors, lawyers and valuers.
- (g) Combination time line; and
- (h) other matters concerning the Combination preparation including costs and negotiations

A handwritten signature in black ink, appearing to be a stylized representation of the Chinese characters '李' (Li) and '强' (Qiang), followed by a large, sweeping flourish.